

Levy Brands LLC - Terms and Conditions of Sale

Applies to every quotation, order confirmation, invoice and shipment. **Effective August 25, 2026 - Version 1.0**

Current version: levybrands.com/terms

These Terms govern every sale by Levy Brands LLC and are incorporated into every quotation, order acknowledgment, order confirmation, invoice and delivery.

1. ACCEPTANCE; ENTIRE AGREEMENT

1.1 These Terms govern every sale by Levy Brands LLC ("Seller") and are incorporated into every quotation, order acknowledgment, order confirmation, invoice and delivery.

1.2 Seller's acceptance of any order is expressly conditioned on Buyer's assent to these Terms. Additional or different terms in Buyer's purchase order or other form are rejected and are not part of the contract. Buyer's acceptance of goods or payment of any invoice is assent to these Terms.

1.3 These Terms may be modified only by a writing signed by an officer of Seller. No salesperson, agent or representative may vary them, waive or extend any claim period, or make any warranty on Seller's behalf. Seller's acceptance of any late or noncompliant claim as an accommodation is not a waiver of these Terms and does not establish a course of dealing.

2. PRICE; DUTIES, TARIFFS, SURCHARGES

2.1 Prices are subject to increase for duties, tariffs, antidumping or countervailing duties, Section 232 or 301 actions, peak-season or other carrier surcharges, and currency or freight-rate changes imposed after the order date. Seller will notify Buyer and obtain approval to ship at a higher rate or off contract.

2.2 Prices exclude all taxes. Buyer is responsible for sales, use and similar taxes unless a valid exemption certificate is on file.

3. EACH SHIPMENT IS A SEPARATE INSTALLMENT

3.1 Each container, truckload or shipment is a separate installment under Tex. Bus. & Com. Code 2.612 and, for all purposes of inspection, acceptance, claim and remedy, a separate contract.

3.2 A nonconformity in one installment does not entitle Buyer to reject, revoke acceptance of, refuse delivery of, or cancel any other installment, any open order or any contract, and does not excuse payment for any other installment.

3.3 Seller may ship in installments and may allocate available product among customers in any commercially reasonable manner.

4. PRE-SHIPMENT INSPECTION; GRADING AT ORIGIN

4.1 Goods are graded at origin to the applicable published grade standard. Seller will provide the mill grading or load-port certificate on request.

4.2 Buyer may, at Buyer's cost and on reasonable notice, appoint an independent surveyor to inspect and sample any lot before shipment. Where Buyer approves a sample, that sample is the standard of conformity for that lot.

4.3 Where Buyer does not exercise the right in 4.2, the origin grading and quantity certificate is prima facie evidence of conformity and quantity, subject only to a timely claim under section 5.

5. INSPECTION AND CLAIM PERIODS (TIME-BARRED)

5.1 Inspection at unloading. Buyer must inspect each container or shipment at unloading, must note any shortage, visible damage or wrong product on the delivery receipt or bill of lading before signing, and must not refuse the shipment.

5.2 Written claim required. Every claim must be received in writing at claims@levybrands.com and must identify the invoice, container and lot numbers, state the specific nonconformity, and include a piece tally of the pieces claimed and photographs. Oral complaints, complaints to a salesperson or sales representative, and notations not delivered to the claims address are not notice and do not start or toll any period.

5.3 SELLER MUST RECEIVE THE WRITTEN CLAIM WITHIN FOURTEEN (14) DAYS AFTER UNLOADING OF THE CONTAINER OR SHIPMENT IN QUESTION, AND IN ALL EVENTS BEFORE ANY OF THE GOODS IN THAT SHIPMENT ARE RESOLD, DELIVERED ONWARD, CUT, RIPPED, SANDED, LAMINATED, FINISHED OR OTHERWISE FURTHER MANUFACTURED.

5.4 NO CLAIM OF ANY KIND MAY BE MADE MORE THAN ONE HUNDRED EIGHTY (180) DAYS AFTER ARRIVAL OF THE SHIPMENT, REGARDLESS OF WHEN THE GOODS WERE UNWRAPPED, DRAWN FROM INVENTORY, SOLD, OR THE ALLEGED NONCONFORMITY DISCOVERED.

5.5 THE PARTIES AGREE THESE PERIODS ARE REASONABLE AND ARE THE STANDARDS BY WHICH THE NOTICE OBLIGATION UNDER TEX. BUS. & COM. CODE 2.607(c)(1) IS MEASURED. IF A CLAIM IS NOT RECEIVED WITHIN THE APPLICABLE PERIOD, THE GOODS ARE CONCLUSIVELY DEEMED ACCEPTED AND CONFORMING, AND EVERY CLAIM, RIGHT AND REMEDY AS TO THOSE GOODS IS PERMANENTLY WAIVED, RELEASED AND EXTINGUISHED.

5.6 ACCEPTANCE OF GOODS IS FINAL. Buyer waives any right to revoke acceptance under Tex. Bus. & Com. Code 2.608 or any similar law, and waives any right to reject goods after the period in 5.3 has run. Buyer's exclusive route for any nonconformity is a timely claim under this section and the remedy in section 7.

5.7 A CLAIM IS LIMITED TO THE SPECIFIC PIECES ACTUALLY INSPECTED, TALLIED AND VERIFIED. NO FINDING ON ANY SAMPLE, BUNDLE, PALLET, CONTAINER OR SHIPMENT MAY BE EXTRAPOLATED, APPLIED OR PRESUMED AS TO ANY OTHER PIECE, BUNDLE, PALLET, CONTAINER OR SHIPMENT. Buyer bears the burden of tallying and proving each piece claimed.

5.8 Condition precedent: goods held intact. As a condition to any claim, Buyer must hold the entire claimed shipment intact, unmixed with other material, unprocessed, in original banding and wrapping where practicable, with all labels, lot codes and container markings preserved, and available for Seller's inspection in unaltered condition for thirty (30) days after the claim. Buyer may not return, alter, repair, dispose of or remanufacture claimed goods without Seller's written authorization. **FAILURE TO SATISFY THIS SECTION VOIDS THE CLAIM IN FULL AND BUYER REMAINS LIABLE FOR THE INVOICE.**

5.9 Binding reinspection. If the parties do not resolve a claim within fifteen (15) days, either party may require reinspection by an independent certified inspector agreed by the parties or, failing agreement, appointed by the applicable industry association. The inspector's determination of grade, conformity and quantity is final and binding on both parties. The party whose position is not sustained pays the inspection and travel cost. Neither party may litigate grade or conformity without first completing reinspection.

5.10 Tolerances and de minimis. Goods conform if they meet the applicable published grade standard and its industry tolerances. No claim lies where the pieces verified as nonconforming are fewer than the greater of the published tolerance for the grade or three percent (3%) of the pieces in the shipment.

5.11 Storage, aging and rotation. Buyer must store goods indoors, dry, off the ground, on level dunnage, banded and protected from moisture, direct sun and uncontrolled humidity, and must rotate inventory first-in, first-out. **WARP, TWIST, CUP, BOW, DELAMINATION, MOISTURE-CONTENT, MOLD, STAIN AND ADHESIVE CLAIMS ON GOODS STORED OR HANDLED OUTSIDE THESE REQUIREMENTS, OR HELD MORE THAN ONE HUNDRED EIGHTY (180) DAYS AFTER ARRIVAL, ARE EXCLUDED.**

5.12 RESALE, ONWARD DELIVERY, CUTTING, RIPPING, SANDING, LAMINATING, FINISHING, FURTHER MANUFACTURING OR COMINGLING OF ANY PIECE IS ACCEPTANCE OF THAT PIECE AND WAIVES ALL CLAIMS AS TO IT.

5.13 Carrier claims. Where risk of loss has passed, transit damage is a claim against the carrier, and Buyer is responsible for meeting the carrier's own deadlines, which are shorter than those above and may be as little as five (5) days from delivery for concealed damage under NMFC Item 300135-A, with nine (9) months to file a formal claim. Seller will provide reasonable documentation to support Buyer's carrier claim.

5.14 ANY ACTION ARISING OUT OF A SALE MUST BE COMMENCED WITHIN ONE (1) YEAR AFTER DELIVERY. If a one-year period is unenforceable under applicable law, the period is the shortest enforceable period and in no event more than two (2) years after delivery.

6. DELIVERY; TITLE; RISK OF LOSS

6.1 Delivery terms are as stated on the order confirmation. Title and risk of loss pass to Buyer at the point stated there.

6.2 Delivery and arrival dates are estimates. Seller is not liable for delay, and delay is not grounds to reject, cancel or claim.

7. EXCLUSIVE REMEDY; LIMITATION OF LIABILITY

7.1 Seller's election. **FOR ANY VALID AND TIMELY CLAIM, SELLER'S ENTIRE LIABILITY AND BUYER'S SOLE AND EXCLUSIVE REMEDY IS, AT SELLER'S SOLE OPTION: (a) REPLACEMENT OF THE SPECIFIC NONCONFORMING PIECES; (b) A GRADE ALLOWANCE OR PRICE ADJUSTMENT ON THOSE PIECES; (c) A CREDIT AGAINST BUYER'S ACCOUNT; OR (d) A REFUND OF THE NET PRICE PAID FOR THOSE PIECES.** The election is Seller's, not Buyer's. Buyer has no right to demand a refund where Seller elects replacement, allowance or credit, and no right to reject, return or revoke acceptance of conforming goods.

7.2 SELLER'S LIABILITY FOR ANY CLAIM, AND IN THE AGGREGATE FOR ALL CLAIMS ARISING OUT OF A SHIPMENT, MAY NOT EXCEED THE NET INVOICE PRICE ACTUALLY PAID TO SELLER FOR THE SPECIFIC PIECES VERIFIED AS NONCONFORMING, LESS CREDITS ALREADY ISSUED. UNDER NO CIRCUMSTANCE DOES SELLER'S LIABILITY EXTEND TO GOODS NOT CLAIMED AND VERIFIED UNDER SECTION 5.

7.3 SELLER IS NOT LIABLE FOR ANY INCIDENTAL, CONSEQUENTIAL, SPECIAL, INDIRECT, PUNITIVE OR EXEMPLARY DAMAGES, INCLUDING LOST PROFITS, LOST SALES, LOSS OF USE, LABOR, FREIGHT, DEMURRAGE, STORAGE, DISPOSAL, DOWNTIME, REMANUFACTURING COST, REPLACEMENT MATERIAL SOURCED FROM A THIRD PARTY, PROJECT DELAY, LIQUIDATED DAMAGES, OR CLAIMS OR BACKCHARGES BY BUYER'S CUSTOMERS, EVEN IF SELLER WAS ADVISED OF THE POSSIBILITY.

7.4 THE EXCLUSIONS AND LIMITATIONS IN 7.2 AND 7.3 ARE INDEPENDENT OF THE EXCLUSIVE REMEDY IN 7.1 AND SURVIVE AND CONTINUE TO APPLY EVEN IF THE EXCLUSIVE REMEDY IS FOUND TO FAIL OF ITS ESSENTIAL PURPOSE.

7.5 Allocation of risk. Buyer acknowledges that the price reflects this allocation of risk and that the price would be materially higher without it.

8. WARRANTIES

8.1 EXCEPT FOR SELLER'S WRITTEN LIMITED WARRANTY, IF ANY, SELLER MAKES NO WARRANTY OF ANY KIND AND EXPRESSLY DISCLAIMS THE IMPLIED WARRANTIES OF MERCHANTABILITY AND OF FITNESS FOR A PARTICULAR PURPOSE AND ANY WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.

8.2 Wood is a natural material. Variation in color, grain, figure and mineral streak, and the way species age and change with light exposure, is inherent and is not a defect. Goods conform if they meet the applicable published grade standard and industry tolerance for the grade sold.

8.3 GOODS SOLD AS FALLDOWN, OFF-GRADE, SHOP GRADE, MILL-RUN, SECONDS, B-STOCK, CLOSEOUT OR "AS IS" ARE SOLD AS IS, WITH ALL FAULTS, and no claim may be made on them other than shortage or wrong product under 5.1.

8.4 Suitability is Buyer's. Buyer is solely responsible for determining that the goods are suitable for Buyer's and its customers' applications and for compliance with codes and specifications at the point of use. Samples, drawings and literature are illustrative and are not a warranty of any specific unit.

8.5 No downstream warranty. Seller makes no warranty to Buyer's customers, and Buyer may not extend, assign or pass through any warranty on Seller's behalf. Buyer indemnifies Seller against any warranty Buyer purports to make beyond these Terms.

9. RETURNS

9.1 No goods may be returned without a Seller-issued RMA number. Goods returned without an RMA will be refused.

9.2 Authorized returns of stock product must be requested within thirty (30) days of arrival, must be unused, unprocessed and in original banding, and are subject to a restocking charge of twenty-five percent (25%) plus return freight, which Buyer prepays.

9.3 Custom, special-order, made-to-order, cut-to-size and custom-finished goods are not returnable.

9.4 A return authorized as an accommodation is not an admission that goods were nonconforming and does not extend or restart any period in section 5.

10. PAYMENT; NO SETOFF

10.1 Payment is due per the terms on the invoice. Past-due balances accrue service charges at the lesser of 1.5% per month or the maximum lawful rate.

10.2 No setoff or chargeback. **A PENDING, DISPUTED OR UNRESOLVED CLAIM DOES NOT ENTITLE BUYER TO WITHHOLD, OFFSET, DEDUCT OR DELAY PAYMENT OF THE INVOICE IN QUESTION OR OF ANY OTHER INVOICE. BUYER WAIVES ANY RIGHT OF SETOFF, DEDUCTION OR RECOUPMENT.** Any approved credit is applied to Buyer's account, not deducted unilaterally by Buyer.

10.3 Seller may suspend shipments, withhold credit and require prepayment or security while any balance is past due, without liability.

11. FORCE MAJEURE

Seller is not liable for delay or failure to perform caused by events beyond its reasonable control, including acts of government, tariff or trade action, port, vessel or customs delay, carrier or equipment shortage, labor disruption, fire, flood, weather, epidemic, war or raw-material shortage.

12. GOVERNING LAW; VENUE; MISCELLANEOUS

12.1 TEXAS LAW GOVERNS, excluding its conflict-of-laws rules and the U.N. Convention on Contracts for the International Sale of Goods.

12.2 EXCLUSIVE VENUE IS THE STATE OR FEDERAL COURTS SITTING IN HARRIS COUNTY, TEXAS, and the parties consent to personal jurisdiction there.

12.3 If any provision is held unenforceable, it is modified to the minimum extent needed to be enforceable and the remainder stays in force.

12.4 Sections 3, 5, 7, 8, 10.2 and 12 survive delivery, acceptance, payment and any termination or cancellation.

12.5 Buyer may not assign the contract without Seller's written consent.